

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

YASSINE GHALEB,

Petitioner

VS.

ARDANNA GHALEB,

Respondent

) Case Number: FDI-23-797499

) Hearing Date: July 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER TO CHANGE TEMPORARY EMERGENCY ORDER, CHILD CUSTODY,
VISITATION (PARENTING TIME), SHORTENING TIME

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Yassine Ghaleb (Father) and Respondent Ardanna Ghaleb (Mother) have two minor children together, Issa (DOB: 2/18/2015, age 11) and Yusra (12/23/2018, age 7). The parties have joint legal custody of the children.
- 2) On 11/5/2024, the Court ordered that the children shall be with Father in Antioch during the week and spend alternating weekends with Mother in San Francisco, from Friday school pick up to Monday morning drop off. Since then, there were several hearings at which the Court maintained the parenting time schedule and issued additional orders including a Tier II of the children's afterschool program and a right of first refusal.
- 3) On 3/25/2026, Father filed an ex parte request for sole legal custody and sole physical custody, with virtual weekend visits for Mother. He stated that Child Protective Services (CPS) "became involved in early February due to concerns of [Mother's] neglect and physical abuse," including "reports of physical discipline involving foreign objects and verbal abuse toward the child(ren)."

1 He stated that Mother was also leaving the children with inappropriate or unsafe caregivers and
2 failing to ensure their regular school attendance. Mother filed a response in which she denied all
3 CPS allegations and stated the children had consistently attended school during her parenting
4 time and were absent only when they were sick and late when there was traffic. The Court denied
5 Father's ex parte request pending a hearing, which was set for 5/21/2026.

6 4) The parties attended mediation and reached a partial agreement that Mother shall have parenting
7 time on alternating weekends from pick up on Saturday at 10AM to drop off on Sunday at 6PM.
8 (See Stipulation and Order filed 5/11/2026.) The parties further agreed to have the matter set for
9 further hearing on 7/21/2026. The Court ordered the parties to file and serve update declarations
10 10 days before the 7/23/2026 hearing.

11 5) On 7/21/2026, Father filed an update declaration in which he reiterates his request for sole legal
12 and physical custody of the children. Documents attached to his declaration show that CPS found
13 the allegations against Mother were "inconclusive" and closed the matter on 6/18/2026.

14 **B. Findings and Orders**

15 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
16 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
17 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
18 children is the United States.

19 2) The Court finds it is in the children's best interests to maintain the current order for joint legal
20 custody to the parties. The Court also maintains the parenting time order set forth in the
21 Stipulation and Order filed 5/11/2026, under which Mother has parenting time on alternating
22 weekends from Saturday at 10AM to Sunday at 6PM.

23 3) If either party has a new request relating to custody and parenting time, they may file a new
24 request for order.

25 4) The Court will prepare the Findings and Order After Hearing.
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